

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK-----X
MUHAMMAD QAISAR ,Index No.
Date Filed:

Plaintiff,

SUMMONS

-against-

THE CITY OF NEW YORK and POLICE OFFICER
COLIN BENNETT,Defendant.
-----X

Plaintiff designates New York County as the place of trial.

The basis of the venue is place of occurrence.

Occurrence took place at Subway station at Broadway and 32nd Street, New York, NY

TO THE ABOVE NAMED DEFENDANT(S):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiffs' Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if the summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Dated: New York, New York
November 1, 2017FRANZBLAU DRATCH, PC
Attorney for PlaintiffBy: Brian M. Dratch, Esq.
233 Broadway, Suite 1800
New York, New York 10007

Defendants' Address:
CITY OF NEW YORK
100 Church Street
New York, New York 10007

Police Office Colin Bennett
Transit District 2
Canal Street Subway
West Broadway/Lispendard Street

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
MUHAMMAD QAISAR

Plaintiffs,

COMPLAINT

-against-

Index No:

THE CITY OF NEW YORK and POLICE OFFICER COLIN
BENNETT

Defendants.
-----X

Plaintiffs, by his attorneys, FRANZBLAU DRATCH, alleges the following, upon
information and belief, as his Complaint:

NATURE OF THE ACTION

1. This civil rights action arises from the defendants violations of plaintiffs
constitutional rights on May 20, 2015
2. Plaintiffs seeks declaratory relief pursuant CPLR 3001 and 28 U.S.C. ' 2201,
compensatory and punitive damages for violation of plaintiff's civil rights pursuant to 42 U.S.C.
"1981, 1983, 1985 and 1986 and an award of costs, disbursements and attorneys fees under 42
U.S.C. §1988.
3. This action is predicated upon violations of plaintiffs' Civil Rights
protected under the United States Constitution inclusive of the Fourth and Fourteenth
Amendments to the United States Constitution as well as the New York State Constitution
actionable pursuant to 42 U.S.C. " 1981, 1983, 1985 and 1986;

PARTIES

4. Plaintiff is and continues to be a resident of the State of New York;

and existing under and by virtue of the laws of the State of New York;

6. Defendant, the CITY OF NEW YORK, has established and maintains the New York City Police Department which is an agency of the defendant, CITY OF NEW YORK;

7. At all times relevant, defendants the CITY OF NEW YORK employed the individual Police Officer, Police Officer Colin Bennett

8. At all times relevant times, defendant Bennett was duly appointed as a Police Officers of the CITY OF NEW YORK;

9. At all times relevant, defendant Bennett was acting under the color of State Law;

10. At all times relevant, defendant Bennett was acting both in their individual and official capacity as employees of defendant the CITY OF NEW YORK;

11. Notwithstanding the unconstitutional and unlawful conduct, the actions of the Police Officer Bennett was taken in the course of his duties and were incidental to their otherwise lawful functions as agents, servants and employees of the CITY OF NEW YORK;

12. That heretofore and on or about the 14th day of November 2016, Plaintiff caused to be served upon Defendant, THE CITY OF NEW YORK, a verified written Notice of Claim for the damages hereinafter set forth. That more than thirty (30) days have elapsed since the date of the said service of the said Notice of Claim and that Defendant, THE CITY OF NEW YORK, has neglected and refused to make payment of the claim. That the aforesaid Notice of Claim was served within ninety (90) days from the date of the occurrence herein, and that this action was commenced within the statutory period applicable in cases such as this.

13. That at all times hereinafter mentioned, Plaintiff, has not appeared for a 50-H and the City will not have to file an answer until such time that plaintiff does appear for a 50-H.

FACTS UNDERLYING PLAINTIFF'S CLAIMS FOR RELIEF

14. On or about August 12, 2016 at approximately 12:30 a.m., plaintiff was arrested

by the defendant Bennett, without warning and without probable cause and was caused to be falsely imprisoned .

15. On or about August 12, 2016 at approximately 12:30 a.m., defendant Bennett used excessive force on plaintiff.

16. On or about July 5, 2017, all charges against plaintiff were dismissed.

20. As a result of each of the defendants conduct Plaintiffs suffered from a loss of liberty and deprivation of civil rights protected by the United States and New York State Constitution as a result of the afore-referenced events;

**FIRST CAUSE OF ACTION FOR VIOLATION OF
PLAINTIFF'S RIGHT TO BE FREE FROM HARM UNDER
THE FOURTH, AND FOURTEENTH AMENDMENTS DUE TO
FALSE ARREST, FALSE IMPRISONMENT AND EXCESSIVE
FORCE**

21. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

22. As a result of the aforescribed actions, including intentional infliction of emotional harm and excessive force upon the plaintiff, that defendants deprived plaintiffs, of the rights, privileges and immunities secured by the Constitution and laws of the United States and the Fourteenth Amendment and the New York State Constitution;

23. As a result of the aforescribed actions, these defendants individually deprived plaintiffs of the right to be free from harm, free from false imprisonment and false arrest secured by the Constitution and laws of the United States and the Fourth and Fourteenth Amendments and the New York State Constitution;

24. As a result of the aforescribed actions, including the physical injuries that defendants caused, defendants individually deprived plaintiffs of Equal Protection under the Law secured by the Constitution and laws of the United States and the Fourteenth Amendment

and the New York State Constitution;

25. The aforescribed constitutional violations are all actionable under and pursuant to 42 U.S.C. " 1981, 1983, 1985 and 1986;

26. The aforescribed acts of these defendants were willful, malicious and performed with reckless disregard for and deliberate indifference to plaintiff's rights;

27. As a result of the foregoing, plaintiff has suffered damages

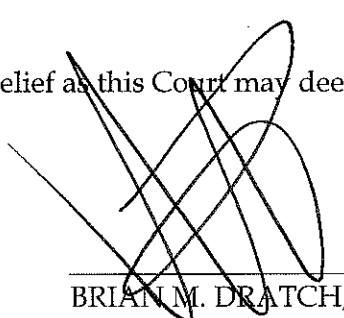
WHEREFORE, plaintiff requests judgment against the defendants as follows:

(A) compensatory damages in an amount that exceeds the jurisdiction of all lower courts that would otherwise have jurisdiction.

(B) As to the first cause of action, punitive damages in an amount that exceeds the jurisdictional limits of all lower Courts that would otherwise have jurisdiction, by reason of the wanton, willful and malicious character of the conduct complained of herein;

(C) As to the first cause of action, an award of attorney's fees as provided under 42 U.S.C. '1988; and

(D) Such other and further relief as this Court may deem just, proper and equitable
Dated: November 1, 2017
New York, New York



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